

22STCV18171 22STCV18171

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-31

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Plaintiff Arthur Tsatryan (Plaintiff), appearing pro per, alleges that he and Defendant Polina Tsatryan (Defendant), also in pro per, were married on August 5, 1987. The parties purchased community property in the city of Tarzana in 1999. Plaintiff alleges that he filed a Petition for Dissolution of Marriage on September 23, 2009, in LASC ("Dissolution Action"). Plaintiff alleges that Defendant engaged in actions to bankrupt him and that she did not make mortgage payments on the Tarzana property, did not pay legal fees, etc. Plaintiff further alleges that Defendant's attorneys engaged in fraudulent acts relating to the Dissolution Action.

On May 18, 2026, Plaintiff filed a motion for an order directing that damages against Defendant be assessed by a jury pursuant to Code of Civil Procedure section 585(b), or, alternatively, for entry of judgment in the amount of \$1,936,748.35. The matter was subsequently reassigned to this Department.

Analysis:

Plaintiff moves for an order directing that damages against defaulted Defendant Polina Tsatryan be assessed by a jury pursuant to Code of Civil Procedure section 585(b), or, alternatively, for entry of judgment in the amount of \$1,936,748.35.

Plaintiff maintains that the Court has favored Defendant, delayed and obstructed justice, intimidated Plaintiff, and improperly assisted Defendant in attempting to obtain relief from her default. Plaintiff further contends that the Court's prior rulings and handling of his default judgment requests demonstrate bias and warrant having a jury assess damages. (Motion, pp. 7-13.)

Code of Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

Here, Plaintiff has not submitted a complete default judgment package from which the Court can determine his entitlement to the requested judgment. In particular, Plaintiff has not submitted a Request for Court Judgment (CIV-100), a proposed judgment, or a declaration and supporting evidence establishing the calculation and evidentiary basis for the \$1,936,748.35 in damages presently requested. Indeed, the Court previously advised Plaintiff that the evidence then before it did not support his substantially larger request for \$3,958,800 and directed Plaintiff either to submit admissible evidence supporting the requested damages or reduce the amount to one supported by the existing evidence.

Although a defendant's default admits the material allegations of a well-pleaded complaint, default does not relieve Plaintiff of the burden of proving his entitlement to the amount of damages sought. Plaintiff now seeks \$1,936,748.35—a substantial monetary judgment—but the present filing primarily challenges the Court's prior rulings rather than supplying competent evidence establishing how that amount was calculated and how the claimed damages were caused by Defendant. Plaintiff's assertions that the Court is biased, has obstructed justice, or has improperly favored Defendant do not substitute for the evidentiary showing necessary to support entry of a default judgment.

Thus, the Court cannot enter judgment for \$1,936,748.35. Therefore, the motion is DENIED.

Dated: August 31, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT